

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 9/23/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0008332

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: DILWORTH CANNON ET AL.	
vs.	
DEFENDANT: DAVID MUNSON ET AL.	

NATURE OF PROCEEDINGS: 1) MOTION – OTHER: PREFERENCE
2) ORDER – SHOW CAUSE – FAILURE TO APPEAR

RULING

In this consolidated action, Plaintiffs Dilworth and Helga Cannon (“Cannons”) filed a motion for trial preference pursuant to Code of Civil Procedure section 36(a). The motion was served on all parties on August 6, 2026. The motion appears to have been calendared on August 24, 2026. However, no proof of service was filed of the calendared motion. No opposition was filed.

Appearances required.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjiEOSHNzEGafG.1>

Meeting ID: 161 548 7764

Passcode: 502070

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court’s website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 9/23/26 TIME: 1:30 P.M. DEPT: H CASE NO: CV0009809

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: A. ANDRES

PLAINTIFF: KORY JACK KINDT vs. DEFENDANT: CITY OF NOVATO, A PUBLIC ENTITY	
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NATURE OF PROCEEDINGS: DEMURRER

RULING

Defendant City of Novato’s demurrer to Plaintiff’s negligence and false arrest causes of action are sustained with leave to amend.

Allegations in the First Amended Complaint

Plaintiff Kory Jack Kindt alleges that beginning in 2025, he repeatedly contacted emergency personnel at Defendant City of Novato (the “City”) seeking assistance regarding thefts, break-ins, trespassing, and safety concerns. The City warned Plaintiff not to repeatedly contact emergency services. On March 5, 2025, portions of Plaintiff’s residence were “breached” and there was fiberglass debris, insulation materials and dust contamination in the residence, causing him emotional distress and physical harm. His repeated requests for assistance were inadequately addressed or ignored. Plaintiff experienced involuntary detentions and psychiatric evaluations and was arrested in August 2025. Plaintiff asserts causes of action that are labelled negligence, property damage, and personal injury/emotional distress.

Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law, and it raises only a question of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “ordinarily is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th